

5.	25CV0901	KIMBRIEL vs. CISCOE et al
Motion to File Cross-Complaint		

Defendant moves to file a compulsory cross-complaint pursuant to Code of Civil Procedure § 428.50(c): “A party shall obtain leave of court to file any cross-complaint Leave may be granted in the interest of justice at any time during the course of the action.”

Plaintiff’s Opposition asserts that the motion is procedurally defective because the notice of motion cites Code of Civil Procedure § 428.50, while the memorandum of points and authorities filed in support of the motion cites section 426.50, which states:

A party who fails to plead a cause of action subject to the requirements of this article, whether through oversight, inadvertence, mistake, neglect, or other cause, may apply to the court for leave to amend his pleading, or to file a cross-complaint, to assert such cause at any time during the course of the action. The court, after notice to the adverse party, shall grant, upon such terms as may be just to the parties, leave to amend the pleading, or to file the cross-complaint, to assert such cause if the party who failed to plead the cause acted in good faith. This subdivision shall be liberally construed to avoid forfeiture of causes of action.

The Court finds that there is no procedural defect that would invalidate the motion. First, the two sections are not contradictory. Section 428.50 specifies that unless a compulsory cross-complaint is filed before an Answer is due, leave of the Court is required. Section 426.50 lists some of the reasons that a party might use to explain the reasons for failing to file the pleading initially or earlier in the proceedings, in this case, the discovery of a potential forgery. Parties are not limited in their legal arguments to only those authorities cited in the notice of motion. From the Notice of Motion Plaintiff is on notice that Defendant seeks the permission of the Court to file a compulsory cross-complaint. The Memorandum of Points and Authorities expands on the Notice and explains why the Court should grant permission. Plaintiff has had every opportunity to review and respond to the authorities and arguments listed in support of the motion.

Jurisdictional Defect

The Court is also not persuaded by Plaintiff’s argument that the Court has already ruled on the issues. The hearing on February 20, 2026, was continued to March 13, 2026. At the hearing on March 13, 2026, the Court took the matter under submission and did not adopt the tentative ruling. On March 16, 2026, the Court issued an *ex parte* Minute Order in which it ordered the parties to meet and confer on the fair market value of the property and indicated that at the next hearing it would consider evidence of the parties’ respective contributions to the property, whereupon it would continue with the procedure described in Code of Civil Procedure § 874.317.

The Court has made no ruling on whether to allow a Cross-Complaint, or on any cause of action listed in the proposed Cross-Complaint. To the extent the proposed Cross-Complaint

addresses title to the property, the Court's determinations under the partition statutes are based on the face of the deed, not on any allegations of fraud that may have led to the state of the title on the face of the deed.

Statute of Limitations/Admissibility of Evidence/Prejudice

To reiterate, the Court did not adopt the prior tentative ruling regarding the statute of limitations. Defendant raises issues of fraud that were allegedly discovered when Plaintiff filed this partition action on April 7, 2025. Plaintiff's substantive arguments on the issue may be directed to the Cross-Complaint when it is filed. The issue before the Court is simply whether it is in the interest of justice to allow Defendant's claims to be heard. The Court finds that it is in the interests of justice to allow both parties to assert their legal claims with respect to the property. The statute must be "liberally construed to avoid forfeiture of causes of action."

TENTATIVE RULING #5: LEAVE TO FILE A CROSS-COMPLAINT IS GRANTED; THE CROSS-COMPLAINT SHALL BE FILED WITHIN TEN DAYS OF SERVICE OF THIS ORDER.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.